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CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO CONTINUE HEARING

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, July 14, 2026 at 8:30 a.m., Department PS2.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406360	MONDRAGON VS COUNTY OF RIVERSIDE	DEMURRER ON 2ND AMENDED COMPLAINT OF IRMA MONDRAGON BY BRANDON BECENTI, HOLIDAY INN EXPRESS & SUITES

Tentative Ruling: Sustained and overruled in part.

Sustained with leave for one additional opportunity to amend as to 1st and 2nd causes of action within 10 days of this order becoming final. Overruled as to 3rd cause of action.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Irma Mondragon ("Plaintiff") worked for defendant County of Riverside as a Social Services Assistant for about 9 years. Plaintiff alleges that on 4/25/23, the County assigned her to supervise a minor alone at a hotel operated by Defendant Holiday Inn Express & Suites ("Defendant") in Corona. The minor, allegedly known to have a history of violence, physically attacked Plaintiff in the hotel gymnasium for about 40 minutes. Plaintiff alleges that this caused significant physical and psychological injury, and she was diagnosed with Post-Traumatic Stress Disorder (PTSD).

The operative Second Amended Complaint ("SAC"), filed 9/17/25, names Defendant and its General Manager, Branden Becenti ("Becenti"), the County, and the supervising county employees, in the following causes of action: (1) intentional misconduct and vicarious liability, (2) negligent hiring, training, and supervision, (3) premise liability, (4) FEHA discrimination, (5) failure to engage in the interactive process, (6) failure to accommodate, (7) retaliation for request for reasonable accommodation, (8) FEHA retaliation, (9) failure to prevent discrimination and retaliation, (10) CFRA retaliation, (11) Labor Code § 1102.5 retaliation (whistleblower retaliation), (12) violation of right to privacy.

Defendants Holiday Inn and Becenti (collectively, "Defendants") demur to the 1st, 2nd, and 3rd causes of action in the SAC for failure to state facts sufficient. Defendants argue that the 1st cause of action for "intentional misconduct" is not a cognizable tort. Even if construed as intentional infliction of emotional distress ("IIED"), passive observation of the attack is not extreme and outrageous conduct. The SAC does not plead intent to cause distress. For the 2nd cause of action (negligent training), Defendants argue that the SAC does not name a single hotel employee who caused injuries. For the 3rd cause of action (premises liability), Defendants assert that landowners owe no duty to prevent third-party criminal conduct. They argue that there were no prior similar incidents to show a reasonably foreseeable risk.

In opposition, Plaintiff argues that for the 1st cause of action for IIED, Defendants had real-time knowledge of the attack, knew of the minor's violent history, and chose not to intervene or assist. For the 2nd cause of action for negligent hiring, Plaintiff argues that Defendant fails to train employees, supervise or adopt protocols, and that Becenti is personally liable as the general manager who directed operations. For the 3rd cause of action, Plaintiff argues that the hotel had

actual prior notice of violent conduct on the premises, that a police call at the hotel the night before showed foreseeable risk of criminal acts, a duty exists, and that Defendants breached their duty.

In reply, Defendants argue that for IIED, inaction does not constitute outrageous conduct. They assert that negligent training and supervision is a derivative tort that requires an underlying tort, which is lacking. Defendants assert that they owed no duty to protect Plaintiff because there were no prior *similar* incidents, and the SAC fails to plead that the hotel or Becenti knew of the prior night's event. They otherwise repeat their arguments in the moving papers.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action - Intentional Misconduct

Intentional misconduct or “willful misconduct” is not a separate tort, but “an aggravated form of negligence, differing in quality rather than degree from ordinary lack of care.” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 526 [internal citations omitted].) However, courts must determine if the factual allegations are adequate to state a cause of action under *any* legal theory. (*Id.* at 525.) Here, Plaintiff seeks emotional distress damages, alleging that Defendants’ failure to act was “intentional and malicious.” (SAC ¶ 63.) A potential theory of liability would be a claim for intentional infliction of emotional distress.

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be “so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

As to Defendant Becenti, the actual cause of action does not identify any particular conduct on his part. (SAC ¶¶ 60-67.) Instead, the court is left to guess what facts in the general allegations in the 59 paragraphs constitute extreme and outrageous conduct. Plaintiff first alleges that her employer, the County, assigned her to care for a minor known to have a history of violent episodes, and that Defendants failed to protect her. (SAC ¶¶ 18-21.) As a result, Plaintiff allegedly endured a physical attack in the hotel gymnasium. (*Id.*, ¶¶ 21-22.) Defendants allegedly “did nothing to help the Plaintiff or otherwise deescalate the attack.” (*Id.*, ¶ 23.) Becenti then allegedly indicated that “he and/or other hotel staff had witnessed the event via camera” but “did not attempt to intervene or assist ... only making contact with the supervisor and offering words of support and a copy of surveillance video afterward.” (*Id.*, ¶ 28.) Finally, the SAC alleges that Plaintiff herself called the police for help, and the police dispatcher “ascertained that the perpetrator was the same child as had been involved in the previous night’s call, and told Ms.

Mondragon that the police could not assist because the child is a ward of the court.” (*Id.*, ¶ 27.) The remaining allegations deal with the County’s failure to accommodate, denial of promotions, and undesirable working conditions. (SAC ¶¶ 31-49.) At best, the allegations describe an inaction on Becenti’s part.

As to Defendant Holiday Inn, the actual cause of action identifies that the hotel “observed the Plaintiff being attacked on the premise[s] for over 40 minutes. Even though Holiday Inn was on notice and was observing the attack in real time via the surveillance camera, they did nothing to assist the Plaintiff who was lawfully on the premise[s] at the time. Defendant Holiday Inn, intentional and malicious, observed the attack occurring and subjected the Plaintiff to the ongoing harm and abuse.”

All this demonstrates is a failure to offer help or prevent third-party criminal conduct, not extreme and outrageous conduct. In *Davidson v. City of Westminster* (1982) 32 Cal.3d 197, the court concluded that “absent an intent to injure, [an] inaction is not the kind of ‘extreme and outrageous conduct’ that gives rise to liability under the ‘intentional infliction of emotional distress’ tort.” (*Id.* at 210.)

Here, the SAC contains no facts suggesting that Defendants acted with an intent to injure. The court must sustain the demurrer to the 1st cause of action with leave to amend.

2nd Cause of Action—Negligent Hiring, Training, and Supervision

An employer may be directly liable to a third party for its negligence in hiring, supervising or retaining an unfit employee. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) The employer is liable because he knew or should have known that the employee created a particular risk or hazard, and that harm materializes. (*Id.*) Liability “is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees.” (*Mendoza v. City of Los Angeles* (1998) 66 Cal.App.4th 1333, 1339.)

To establish a claim for negligent supervision, “a plaintiff must show that a person in a supervisory position over the [employee] had prior knowledge of [that specific employee’s] propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.)

Here, the SAC identifies no employee who committed a bad act against Plaintiff. Rather, it alleges that Plaintiff’s injuries were inflicted by a minor in the County’s custody. (SAC ¶¶ 22, 27.) The only conduct attributed to an employee is the observation of the gymnasium camera and a phone call to the supervisor. (*Id.*, ¶ 28.) As pled, this claim against Defendant hotel for its derivative liability is not sufficient. There are also no other allegations as to Defendant Becenti’s duty to hire the hotel’s workforce, or to supervise or retain an unfit employee.

Accordingly, the court must sustain the demurrer to the 2nd cause of action with leave to amend.

3rd Cause of Action—Premises Liability

The elements of a negligence claim are: (1) legal duty owed to plaintiffs to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) Premises liability is a form of negligence. Accordingly, the elements of a claim for injuries suffered by an invitee due to a dangerous condition on the premises (whether natural or artificial) are duty, breach, causation, and damages. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) Concerning the elements of duty and breach, a property owner has a duty to exercise ordinary care in using or maintaining his or her

property to avoid exposing others to an unreasonable risk of injury; the failure to fulfill this duty is negligence. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) “[T]he existence and scope of a property owner’s duty to protect against third party crime is a question of law for the court to resolve.” (*Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1213.)

First, a business proprietor owes “a special-relationship-based duty to undertake reasonable and minimally burdensome measures to assist customers or invitees who face danger from imminent or ongoing criminal assaultive conduct occurring upon the premises.” (*Morris v. De La Torre* (2005) 36 Cal.4th 260, 269.) Here, Plaintiff was allegedly an invitee lawfully on the hotel premises as a County employee performing her job duties. (SAC ¶¶ 18, 21 29, 63.) Therefore, Defendants allegedly owed Plaintiff a duty to maintain a safe environment and assist in ongoing dangers. “Turning to the question of the scope of a landlord’s duty to provide protection from foreseeable third party crime, ... we have recognized that the scope of the duty is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed.” (*Castaneda v. Olsher, supra*, 41 Cal.4th at 1213.) Here, the SAC alleges that “[d]espite being on notice of the attack as it was occurring, and despite knowledge of the incident that occurred on the Holiday Inn premises the day prior, defendants Holiday Inn and Defendant Branden Becenti did nothing to help the Plaintiff or otherwise deescalate the attack.” (SAC ¶ 23.) The SAC further alleges that Defendants “had witnessed” Plaintiff being attacked “via camera footage of the gymnasium,” (*Id.*, ¶ 28), and “[e]ven though Holiday Inn was on notice and was observing the attack in real time ... they did nothing to assist the Plaintiff who was lawfully on the premise[s] at the time.” (*Id.*, ¶ 63.) Here, the SAC asserts that Defendants failed to take *any* reasonable protective measures, and that Defendants breached their duty by failing to “provide the protection of immediate intervention to stop” the attack. (*Id.*, ¶ 72).

As to foreseeability, the SAC alleges that “the police had been called due to an incident with the child the previous night” (*Id.*, ¶ 19), that Defendants had knowledge of the incident that occurred on the Holiday Inn premises the day prior (*Id.*, ¶ 23), and that the hotel and Becenti “were both aware of the child’s violent tendencies and past police intervention.” (*Id.*, ¶ 28.) At the pleading stage, these allegations must be accepted as true. A police-involved violent incident by the same individual at the same property the night before constitutes a prior similar incident that would place a property owner on notice of a threat.

Contrary to Defendants’ argument, whether calling the police would have been futile is a question that cannot be resolved on demurrer. Consequently, because the SAC alleges a special relationship, prior notice of a threat, and a failure to take any protective measures during an ongoing assault, the SAC stated facts sufficient for a premises liability claim. The demurrer to the 3rd cause of action is overruled.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406360	MONDRAGON VS COUNTY OF RIVERSIDE	MOTION TO STRIKE PORTIONS OF PLAINTIFF'S 2ND AMENDED COMPLAINT

Tentative Ruling: Granted.

No opposition filed.

The following portions of the operative 2nd Amended Complaint are ordered stricken: